



POLICE DEPARTMENT

3/9/2020
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Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 9, 2020

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 201807794 regarding Police Officer Carlos Pacheco, Tax No. [REDACTED] (DADS No. 2019-21125) and Lieutenant John Diaz, Tax No. [REDACTED] (DADS No. 2019-21124)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, including Body Worn Camera video evidence. In this matter, the Police Commissioner agrees with CCRB that the stop, frisk and summons of the individual were inappropriate. However, the Police Commissioner disagrees with the penalty recommendations of CCRB.

In this matter, Police Officer Pacheco was responding to a 911 call of a male with a firearm. Police Officer Pacheco observed an individual he believed to match the description of the anonymous 911 call. However, in this case, Police Officer Pacheco should have taken further steps to verify the caller or make further observations of the individual prior to determining whether a stop of the individual was warranted. Based on the foregoing, the Police Commissioner has determined that that actions of Police Officer Pacheco, while improper, did not rise to the level of a Schedule "B" Command Discipline. Therefore, the Police Commissioner directs that Police Officer Pacheco be issued a Schedule "A" Command Discipline.

Additionally, Lieutenant (then Sergeant) Diaz's decision to issue a summons for Disorderly Conduct against the individual was improper. Lieutenant Diaz's determination that the individual be removed from the street due to the potential for a crowd gathering and possible violent resistance did not justify the issuance of a summons to the individual. However, in light of Lieutenant Diaz's discipline history, the Police Commissioner determined that Lieutenant Diaz will receive a Schedule "A" Command Discipline.

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If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Cecil Wade', with a stylized, flowing script.

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office